**CONSTITUTION**

**MALAYSIAN DOCTORS OF CIRCUMCISION SOCIETY (MADOCS)**

CLAUSE 1 **NAME**

1. The Association shall be known as

**MALAYSIAN DOCTORS OF CIRCUMCISION SOCIETY (MADOCS)**

Hereinafter referred to as "the Association".

2. Meaning of name : **MADOCS is abbreviated of Malaysian Doctors of Cicumcision Society which is also known as Pertubuhan Doktor Khatan Malaysia in Malay (abbreviated as PDKM). It is a non-profit, non-governmental and politically independent association which focusing on providing circumcision related knowledge and sustainable health related development for vulnerable communities.**

3. Level : **Kebangsaan**

CLAUSE 2 **ADDRESS**

1. The registered address is

**KLINIK SEJAHTERA, NO 61, JALAN SETIA RAWANG 1, TAMAN SETIA**
**48000 RAWANG**
**SELANGOR**

or at such other place as may from time to time be decided by the Committee; and the postal address is

**KLINIK SEJAHTERA, NO 61, JALAN SETIA RAWANG 1, TAMAN SETIA**
**48000 RAWANG**
**SELANGOR**

2. The registered and postal addresses shall not be changed without the prior approval of the Registrar of Societies.

CLAUSE 3 **OBJECTIVE**

3. The Society is a non-profit organization focusing on providing circumcision related knowledge and sustainable health related development for vulnerable communities. The objectives of the Society are as follows:
- To share circumcision related knowledge, technique, know how, etc among members.

- To act on behalf of members as front liner in looking after the welfare of members
- To educate, promote and create awareness on safe circumcision related activities.
- To carry out charitable and social activities for the benefit of members and public mass.

CLAUSE 4 **MEMBERSHIP**

4.1 The membership of the Society shall consist of the following categories: -
- Ordinary membership: Must be individual with following criteria-
i. Nationality: Malaysian
ii. Age limits: 18 years old and above
iii. Dwelling place: Malaysia
iv. Race: Of any race who are Malaysian citizen
v. Sex: Male or Female
vi. Religion: Any religion or belief
vii. Other criteria: Practising doctors who is registered with Malaysian Medical Council (MMC); and also interested and been involved in circumcision activities.

- Associate membership: Must be individual with following criteria-
i. Nationality: Malaysian
ii. Age limits: 18 years old and above
iii. Dwelling place: Malaysia
iv. Race: Of any race who are Malaysian citizen
v. Sex: Male or Female
vi. Religion: Any religion or belief
vii. Other criteria: Medical assistants, nurses, qualified person in medical or pharmaceutical sciences who are interested and been involved in circumcision activities.

- Student Membership: Must be individual with following criteria
i. Nationality: Malaysian
ii. Age limits: 18 years old and above
iii. Dwelling place: Malaysia
iv. Race: Of any race who are Malaysian citizen
v. Sex: Male or Female
vi. Religion: Any religion or belief
vii. Other criteria –Interested to join the medical field after graduations, provided that a university or university-college student shall obtain the prior approval of the Vice-Chancellor concerned.

- Honorary membership: Must be individual with following criteria
i. Nationality: Malaysian
ii. Age limits: 18 years old and above
iii. Dwelling place: Malaysia
iv. Race: Of any race who are Malaysian citizen
v. Sex: Male or Female
vi. Religion: Any religion or belief
vii. Other criteria – Surgeon, doctors and individual who have contributed in

circumcision field and recognized by the association.

- Life membership: Must be individual with following criteria
i. Nationality: Malaysian
ii. Age limits: 18 years old and above
iii. Dwelling place: Malaysia
iv. Race: Of any race who are Malaysian citizen
v. Sex: Male or Female
vi. Religion: Any religion or belief
vii. Other criteria – Practising doctors who is registered with Malaysian Medical Council (MMC); surgeon, doctors and individual who have contributed in circumcision field and recognized by the association.

4.2 Every application for membership shall be proposed by one existing member and shall be forwarded to the Secretary who shall at the first convenient opportunity, submit it to the Committee for approval. The Committee may at its discretion reject any application without assigning any reason thereof.

4.3 Every applicant whose application has been approved as aforesaid shall, upon payment of the prescribed entrance fee and first monthly subscription, be admitted as a member of the Society and shall be entitled to all the privileges of membership.

## CLAUSE 5 **RESIGNATION AND TERMINATION**

5.1 Any member who wishes to resign from the Society shall give two weeks notice in writing to the Secretary and shall pay up all dues.

5.2 Any member who fails to comply with the rules of the Society or has acted in a manner to bring disrepute upon the Society may be expelled or suspended for a period of time as the Committee deems fit. Before the Committee expels or suspends the member, the member shall be informed of the grounds for such expulsion or suspension in writing and be given an opportunity to explain and clear himself in person. Such suspension or expulsion shall be enforced, unless otherwise reversed by a general meeting upon appeal by the said member.

## CLAUSE 6 **SOURCE OF INCOME**

6.1 The entrance and subscription payable shall be as follows:=

6.1.1 Ordinary Member shall pay an entrance fee RM100 and annual fee RM100
6.1.2 Associates member shall pay a registration fee RM100 and annual fee RM100
6.1.3 Student member shall pay a registration fee RM25 and annual fee RM25
6.1.4 Honorary Member shall not require to pay for any fee and it must be through special appointment by the Association committee.
6.1.5 Life member shall pay registration fee RM100 and one time fee RM1000

Each member shall pay annual subscription as described above.

6.2 All yearly subscription shall be payable to the Treasurer in advance within 30 days from the first day of January.

6.3 Any member who allows his subscription arrears to exceed three months shall receive a written notification signed by or on behalf of the Secretary and shall be denied the privileges of membership until he/she settles his/her account.

6.4 Any member who allows his/her subscription arrears to exceed six months shall be suspended for membership and lost all benefit as members. Committee may direct legal action be taken against him, provided that they are satisfied that he has received due notice of his debts.

6.5 The Committee shall have the power to fix a re-entrance fee for any person who has allowed his membership to lapse through arrears.

6.6 Special subscriptions or levies for particular purposes may be raised from members by resolution of the general meeting of the Society. If any member fails to pay such subscription within such period as may be resolved, the amount due shall be treated in the same way as arrears of yearly subscription

6.7 Donation
The Society are allowed to accept donations in cash or in-kind. Monetary contributions shall be clearly and distinctly declared in the annual statement of the society.

6.8 Fund-Raising
The society can raise fund from the public with the condition of the permission of the committee is obtained in advance.

6.9 Economic activities.
The society is allowed to carry out economic activities such as selling, investing, renting, owning movable and immovable property as well as other economic activities to raise funds in order to carry out the activities of the society.

## CLAUSE 7 **GENERAL MEETING**

7.1 The supreme authority of the Society is vested in a general meeting of the members. At least one-half of the voting membership of the Society or the voting members present represent twice the total number of committee members, whichever is the lesser, must be present at a general meeting for its proceedings to be valid and to constitute a quorum. Only ordinary members are granted for voting. Whereas, the associate members and student members are not eligible for voting right.

7.2 If half an hour after the time appointed for the meeting a quorum is not present,

the meeting shall be postponed to a date (not exceeding 30 days) to be decided by the Committee; and if a quorum is not present half an hour after the time appointed for the postponed meeting, the members present shall have the power to proceed with the business of the day but shall not have the power to alter the rules of the Society or make any decision affecting the whole membership.

7.3 An annual general meeting of the Society shall be held as soon as possible after the close of each financial year but not later than April on a date and a time and place to be decided by the Committee. The business of the annual general meeting shall be:-

7.3.1 To receive the minutes of the previous annual general meeting;
7.3.2 To receive the Committee's report on the working of the Society during the previous year;
7.3.3 To receive the Treasurers' report and the audited accounts of the Society for the previous year;
7.3.4 To elect a Committee and to appoint auditors for the ensuing year;
7.3.5 To deal with such other matters as may be put before it.

7.4 The Secretary shall send to all members at least 21 days before the meeting either soft copy or hard copy of the agenda which includes copies of minutes and reports, together with the audited accounts of the Society for the previous year. Copies of these documents will also be made available at the registered place of business of the Society for the perusal of members.

7.5 An extraordinary general meeting of the Society shall be convened:-

7.5.1 Whenever the Committee deems it desirable; or
7.5.2 At the joint request in writing of not less than twice the number of committee members, stating the objects and reasons for such meeting.
7.5.3 An extraordinary general meeting requisitioned by members shall be convened for a date within 14 days of the receipt of such requisition.
7.5.4 Notice and agenda for an extraordinary general meeting shall be forwarded by the Secretary to all members at least 7 days before the date fixed for the meeting.
7.5.5 Paragraphs 7.1 and 7.2 of this rules regarding the quorum and the postponement of an annual general meeting shall apply also to an extraordinary general meeting, but with the provision that if no quorum is present after half an hour from the time appointed for a postponed extraordinary general meeting requisitioned by the members, the meeting shall be cancelled, and no extraordinary general meeting shall be requisitioned for the same purpose until after the lapse of at least six months from the date thereof.

The Secretary shall forward to all members a copy of the draft minutes of each annual and extraordinary general meeting within 60 days as soon as possible after its conclusion.

CLAUSE 8 **COMMITTEE**

8.1 A committee consisting of the following, who shall be termed the office-bearers of the Society, shall be elected at the annual general meeting once in every 2 years:-

A President
A Vice-President
A Secretary
An Assistant Secretary
A Treasurer
8 Committee Members

8.2 All office-bearers of the Society and every officer performing executive functions in the Society shall be Malaysian citizens.

8.3 Names for the above offices in paragraph 8.1 shall be proposed and seconded and election will be by a simple majority vote of the members at the annual general meeting. All the office-bearers shall be eligible for re-election after their terms expired. Each position will be selected among the office-bearers who have win during the election.

8.4 The function of the Committee is to organize and supervise the day-to-day activities of the Society and to make decisions on matters affecting its running within the general policy laid down by the general meeting. The Committee shall not act contrary to the expressed wishes of the general meeting without prior reference to it and shall always remain subordinate to the general meeting. It shall furnish a report to each annual general meeting on its activities during the previous year.

8.5 The Committee shall meet at least once every three months, a 7 (seven) days notice of each meeting shall be given to the members. The President acting alone, or not less than three of its members acting together may call for a meeting of the Committee to be held at any time. At least one half of the Committee members must be present for its proceedings to be valid and to constitute a quorum.

8.6 Where any urgent matter requiring the approval of the Committee arises and it is not possible to convene a meeting, the Secretary may obtain such approval by means of a circular letter. The following conditions must be fulfilled before a decision of the Committee is deemed to have been obtained:-

8.6.1 The issue must be clearly set out in the circular and forwarded to all members of the committee;
8.6.2 At least one-half of the members of the Committee must indicate whether they are in favour or against the proposal; and
8.6.3 The decision must be by a majority vote.

Any decision obtained by circular letter shall be reported by the Secretary to the next Committee meeting and recorded in the minutes thereof.

8.7 Any member of the Committee who fails to attend three consecutive meetings of the committee without satisfactory explanation shall be deemed to have resigned

from the Committee.

8.8 In the event of the death or resignation of a member of the Committee, the Committee shall have the power to co-opt any other member of the society to fill the vacancy until the next election of office-bearers.

8.9 The Committee shall give instructions to the Secretary and other officers for the conduct of the affairs of the Society. It may appoint such officers and such staff as it deems necessary. It may suspend or dismiss any officers or member of the staff for neglect of duty, dishonesty, incompetence, refusal to carry out the decisions of the Committee, or for any other reason which it deems good and sufficient in the interest of the Society.

8.10 The Committee may appoint any sub-committee for any purpose arising out of or connected with any of the duties, functions and aims laid down under the rules. Any members can become members of these sub-committee.

## CLAUSE 9 **DUTIES OF OFFICE BEARERS**

9.1 The President shall during his term of office preside at all general meetings, all meetings of the committee and shall be responsible for the proper conduct of all such meetings. He shall have the casting vote and shall sign the minutes of each meeting at the time they are approved.
He shall, in conjunction with the Secretary and Treasurer sign all cheques on behalf of the Society.

9.2 The Vice-president shall deputize for the President during the latter's absence.

9.3 The Secretary shall conduct the business of the Society in accordance with the rules, and shall carry out the instructions of the general meeting and of the Committee. He shall be responsible for conducting all correspondence and keeping all books, documents and paper except the accounts and financial records. He shall attend all meetings, and record all proceedings. He shall keep a membership register consisting of details such as name, identity card number, date and place of birth, occupation, name and address of employer and residential address. He shall in conjunction with the President and the Treasurer, sign all cheques on behalf of Society. He shall file annual returns within 60 days from the date of the annual general meeting to the Registrar of Societies.

9.4 The Assistant Secretary shall assist the Secretary in carrying out his duties and shall act for him in his absence.

9.5 The Treasurer shall be responsible for the finances of the Society. He shall keep accounts of all its financial transactions and shall be responsible for their correctness. He shall in conjunction with the President and the Secretary sign all cheques on behalf of the Society.

9.6 The Ordinary Committee Members shall carry out such duty as directed by the President or the Committee.

## CLAUSE 10 **FINANCIAL PROVISION**

10.1 Subject to the following provisions in this rules, the funds of the Society may be expended for the purpose necessary for the carrying out of its objects, including the expenses of its office-bearers and paid staff, and the audit of its accounts, but they shall on no account be used to pay the fine of any member who may be convicted in a court of law.

10.2 The Treasurer may hold a petty cash advance not exceeding RM 2000 (Ringgit Malaysia tiga ribu) at any one time. All money in excess of this sum shall within seven days of receipt be deposited in a bank approved by the Committee. The bank account shall be in the name of the Society.

10.3 All cheques or withdrawal notices on the Society's account shall be signed jointly by the President, the Secretary and the Treasurer. In the absence of the President, the Secretary or the Treasurer for a long period, the Committee shall appoint one of its members to sign in his place.

10.4 No expenditure exceeding RM 10,000 (Ringgit Malaysia ten thousand) at any one time shall be incurred without the prior sanction of the committee, and no expenditure exceeding RM 15,000 (Ringgit Malaysia fifteen thousand) in any one month shall be incurred without the prior sanction of a general meeting. Expenditure less than RM 10,000 (Ringgit Malaysia ten thousand) at any one time may be incurred by the President, Secretary and Treasurer; and must be exceeding RM 2000 from Treasurer's petty cash. Amount that approved through general meeting is limited to RM 20,000 (ringgit Malaysia twenty thousand) only. If there are need to obtain expenditure exceeding RM 20,000 it must be presented during next general meeting.

10.5 As soon as possible after the end of each financial year, a statement of receipts and payments and a balance sheet for the year shall be prepared by the Treasurer and audited by the Auditors appointed under the rule 12. The audited accounts shall be submitted for the approval of the next annual general meeting, and copies shall be made available at the registered place of business of the Society for the perusal of members.

10.6 The financial year of the Society shall commence on the 1st January and end on the 31st December every year.

## CLAUSE 11 **AUDITORS**

10.1 Two persons, who shall not be office-bearers of the Society, shall be appointed, by the committee as Honorary Auditors. They shall hold office for one

year and may be reappointed.

10.2 The Auditors shall be required to audit the accounts of the Society for the year, and to prepare a report for the annual general meeting. They may also be required by the President to audit the accounts of the Society for any period within their tenure of office, at any date, and to make a report to the Committee

## CLAUSE 12 **PROPERTY ADMINISTRATOR**

12.1 All immovable property of the society shall be registered in the name of the Society and all instruments of execution relating to this property are deemed valid and effective as if it had been executed by a proprietor registered provided the instrument is executed by 3 position holders of the society at the time for which their appointment was confirmed through certification issued by the Registrar of Societies and sealed with Society seal.

12.2 The immovable property of the Organization may not be sold, mortgaged, repossessed or transferred without the approval of the General Meeting.

12.3 Three Trustees consist of President, Secretary & Treasurer who shall hold office during the pleasure of the society. They shall be vested in them all immovable properties whatsoever belonging to the Society upon execution of a Deed of Trust.

## CLAUSE 13 **INTERPRETATION**

13.1 Between annual general meetings the committee shall interpret the rules of the Society and when necessary, determine any point on which the rules are silent.

13.2 Except where they are contrary to or inconsistent with the policy previously laid down by the general meeting, the decisions of the Committee shall be binding on all members of the Society unless and until countermanded by a resolution of a general meeting.

## CLAUSE 14 **ADVISOR / PATRON**

14 The Committee shall if it deems fit and necessary appoint qualified persons to be the Advisor or Patron of the Society. The person appointed must give his consent in writing.

## CLAUSE 15 **PROHIBITION**

15.1 None of the following games shall be played in the premises of the Society: Roulette, Lotto, Fan Tan, Poh, Peh Bin, Belankai, Pai Kau, Tau Ngau, Tien Ngau, Tien Kow, Chap Ji Kee, Sam Cheong, Twenty One, Thirty One, Ten and a half, all

games of dice, bankers' games, all video games and all games of mere chance.

15.2 Neither the Society nor its members shall attempt to restrict or in any other manner interfere with the trade or prices or engage in any Trade Union activities as defined in the Trade Union Act, 1959.

15.3 The Society shall not hold any lottery, whether confined to its members or not, in the name of the society, its office-bearers or members without prior approval from the authorities concerned.

15.4 "Benefits" as mentioned under section 2 of the Societies Act 1966 shall not be given by the society to any of its member.

## CLAUSE 16 **AMENDMENT OF CONSTITUTION**

16 These Rules shall not be amended except by resolution of a general meeting. Such amendments shall take effect from the date of their approval by the Registrar of Societies. Any amendment to the rules shall be forwarded to the Registrar of Societies within 60 days of being passed by the general meeting.

## CLAUSE 17 **DISSOLUTION**

17.1 The Society may be voluntarily dissolved by a resolution of not less than three-fifths of the membership present in a general meeting.

17.2 In the event of the Society being dissolved as provided above, all debts and liabilities legally incurred on its behalf shall be fully discharged, and the remaining funds shall be disposed of in such manner as may be decided upon by a general meeting.

17.3 Notice of dissolution shall be forwarded to the Registrar of Societies within 14 days of its dissolution.

## CLAUSE 18 **FLAG, LOGO AND BADGE**

1. Flag
   -
   Description
   -
2. Logo

Description

The logo of the Society shall be that of the word “MADOCS” which is the official acronym of Malaysian Doctors of Circumcision Society. The symbolic caduceus is the insignia of the public health service where the society provides circumcision related knowledge and sustainable health related development for vulnerable communities. Scalpel and scissors symbols indicates the surgical field where the circumcision are part of surgical activities. Four colours used in the logo which are red, white, blue was a symbol of leadership, symbol of
honour, dignity and sovereignty where the members of the society shall have these four attitude in order to achieve the society objectives.

3. Badge

Description
The badge of the Society shall be that of the word “MADOCS” which is the official acronym of Malaysian Doctors of Circumcision Society. The symbolic caduceus is the insignia of the public health service where the society provides circumcision related knowledge and sustainable health related development for vulnerable communities. Scalpel and scissors symbols indicates the surgical field where the circumcision are part of surgical activities. Four colours used in the logo which are red, white, blue was a symbol of leadership, symbol of
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